



File No.: EXP202405697

RESOLUTION FOR TERMINATION OF THE PROCEDURE BY RECOGNITION OF RESPONSIBILITY AND VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On March 10, 2025, the Presidency of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against FUNDACIÓ PRIVADA DE SERVEIS PER ALS USUARIS DEL HABITATGE SOCIAL DE CATALUNYA (hereinafter, social housing foundation), through the agreement that is transcribed:

<<

File No.: EXP202405697 (PS/00382/2024)

AGREEMENT TO INITIATE SANCTIONING PROCEDURE

From the actions taken by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on March 18, 2024. The complaint is directed against FUNDACIÓ PRIVADA DE SERVEIS PER ALS USUARIS DEL HABITATGE SOCIAL DE CATALUNYA with NIF G62041207 (hereinafter, social housing foundation). The reasons for the complaint are as follows:

The complainant states that the property management company in question, terminated in January 2024, changed the bank account for the payment of the community water meter bill to its own current account. It indicates that the water company proceeded to make the change without requesting a certificate of account ownership, where it would have verified that this account was personal and not a community account, and without having its authorization for that charge to be made effective.

The complaint is accompanied by the following documentation:

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sede.aepd.gob.es

2/14

- Copy of the minutes of the meeting of the Board of Owners held in an extraordinary session on (...), in which the termination of the property management company in question is agreed upon.
- Copy of the receipt charged to the complainant's current account by Company D'Aigues de Sabadell, S.A. dated (...).

- Copy of the corresponding quarterly invoice issued on 01/03/2024 by Company D'Aigues de Sabadell, S.A. corresponding to the period November 28 – February 28, 2024.

SECOND: On April 15, 2024, in accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the aforementioned complaint was forwarded to the party being complained against, so that it could analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on April 15, 2024, as evidenced by the acknowledgment of receipt in the file.

No response has been received to this forwarding.

THIRD: On June 18, 2024, in accordance with Article 65 of the LOPDGDD, the complaint submitted by the complainant was admitted for processing.

FOURTH: According to the report obtained from the AXESOR tool, FUNDACIÓ PRIVADA DE SERVEIS PER ALS USUARIS DEL HABITATGE SOCIAL DE CATALUNYA is an entity established in 2001, with a business volume of 1,956,844 euros in 2022.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

II

Procedure

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, and the provisions

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeapd.gob.es

3/14

regulatory provisions issued in its development and, insofar as they do not contradict them, with a subsidiary character, by the general rules on administrative procedures."

In accordance with Article 64 of the LOPDGDD, and taking into account the characteristics of the alleged infringement committed, a sanctioning procedure is initiated.

The procedure shall have a maximum duration of twelve months from the date of the initiation agreement. Upon the expiration of this period, it will become void, and consequently, the proceedings will be archived, in accordance with the provisions established in Article 64 of the LOPDGDD.

If no allegations are made regarding this initiation agreement within the stipulated period, it may be considered a proposal for resolution, as established in Article 64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

III

Preliminary Issues

Article 4.1) of the GDPR defines "personal data" as: "any information relating to an identified or identifiable natural person ('the data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more specific elements of the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person."

Article 4.2) of the GDPR defines "processing" as: "any operation or set of operations which is performed on personal data or on sets of personal data, whether or not by automated means, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment, combination, restriction, erasure or destruction."

Article 4.7) of the GDPR defines the "data controller" or "controller" as: "the natural or legal person, public authority, agency or other body which, alone or jointly with others, determines the purposes and means of the processing; where the purposes and means of such processing are determined by Union or Member State law, the controller or the specific criteria for its designation may be provided for by Union or Member State law." Likewise, Article 4.8) of the GDPR defines the "processor" or "processor" as: "the natural or legal person, public authority, agency or other body which processes personal data on behalf of the controller."

In the present case, in accordance with the provisions established in Articles 4.1 and 4.2 of the GDPR, it is noted that there is processing of personal data, since Fundación habitage social carries out, among other processing activities, the collection, recording, organization, storage, and use of, among others, the following personal data of individuals.

C/ Jorge Juan, 6

www.aepd.es

physical persons: name and surname, ID number, postal address, telephone number, email, and bank details of the owners of the community of the claimant.

Fundación Habitaje Social carries out this activity in its capacity as data controller, as it is the one who determined the purposes and means of such activity, pursuant to Article 4.7 of the GDPR.

IV

Unfulfilled obligation. Lawfulness of processing

The first paragraph of Article 6 of the GDPR states the following:

“1. Processing shall be lawful only if at least one of the following applies:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract;
- c) processing is necessary for compliance with a legal obligation to which the controller is subject;
- d) processing is necessary in order to protect the vital interests of the data subject or of another natural person;
- e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- f) processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provision in point f) of the first paragraph shall not apply to processing carried out by public authorities in the performance of their tasks.”

In the present case, the conduct of the party being claimed against, which is the subject of this sanctioning file, concerns the processing of the personal data of the claimant without a legal basis to support it. This processing has materialized in including the personal data of the claimant in the direct debit order for the water meter bill of the community of property owners where the claimant resides, and of which the party being claimed against was the property administrator, without having obtained express authorization for this, which has resulted in the issuance of the corresponding bill against the bank account of the claimant to enforce the collection.

As previously indicated, for the processing of personal data to be lawful, the GDPR requires that it be based on one of the lawful grounds listed in its Article 6, paragraph 1.

In accordance with the evidence available at this moment of the initiation of the sanctioning procedure, and without prejudice to what results from the instruction, it is considered that the described facts could constitute an infringement attributable to the party being claimed against, for violation of the principle of lawfulness enshrined in Article 6.1 of the GDPR.

V

Classification of the infringement of Article 6.1 of the GDPR and qualification of the infringement for the purposes of limitation

Article 83.5 of the GDPR classifies as an administrative infringement the violation of the following article, which shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

- a) The basic principles for processing, including the conditions for consent pursuant to Articles 5, 6, 7, and 9.”

For its part, the LOPDGDD in its Article 71, Infringements, states that:

“Acts and conduct referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements.”

For the sole purposes of the limitation period, Article 72.1 of the LOPDGDD establishes the following: "Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and shall be subject to a limitation period of three years, which involve a substantial violation of the articles mentioned therein and, in particular, the following:

b) The processing of personal data without any of the conditions for lawful processing established in Article 6 of Regulation (EU) 2016/679 being met."

VI

Proposal for sanction

The determination of the sanction to be imposed in the present case requires observing the provisions of Articles 83.1 and 83.2 of the GDPR, which state:

"1. Each supervisory authority shall ensure that the imposition of administrative fines pursuant to this article for the infringements of this Regulation indicated in paragraphs 4, 5, and 6 is, in each individual case, effective, proportionate, and dissuasive.

2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure to those provided for in Article 58, paragraph 2, letters a) to h) and j). In deciding to impose an administrative fine and its amount in each individual case, due regard shall be given to:

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sede.aepd.gob.es
6/14

a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of affected data subjects and the level of damage and harm they have suffered;

b) the intent or negligence in the infringement;

c) any measures taken by the data controller or processor to mitigate the damage and harm suffered by the data subjects;

d) the degree of responsibility of the data controller or processor, considering the technical or organizational measures they have applied under Articles 25 and 32;

e) any previous infringements committed by the data controller or processor;

f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate any potential adverse effects of the infringement;

g) the categories of personal data affected by the infringement;

h) the manner in which the supervisory authority became aware of the infringement, in particular whether the data controller or processor notified the infringement and, if so, to what extent;

i) when the measures indicated in Article 58(2) have been previously ordered against the data controller or processor in relation to the same matter, compliance with those measures;

j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42; and

k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement."

Regarding section k) of Article 83.2 of the GDPR, the LOPDGDD, Article 76, "Sanctions and corrective measures," establishes:

"2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

a) The continued nature of the infringement.

b) The connection of the infringer's activity with the processing of personal data.

c) The benefits obtained as a result of the commission of the infringement.

d) The possibility that the conduct of the affected party may have induced the commission of the infringement.

e) The existence of a merger by absorption after the commission of the infringement, which cannot be

attributed to the absorbing entity.

f) The impact on the rights of minors.

g) Having a data protection officer when not mandatory.

h) The voluntary submission by the data controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any data subject."

In the present case, considering the severity of the possible infringement, particularly regarding the consequences that its commission causes to the affected party, the imposition of a fine would be appropriate, in addition to the adoption of measures, if applicable.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeapd.gob.es

7/14

The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR. To ensure these principles, the turnover of the party being claimed (1,956,844 euros in the year 2022) is considered as a preliminary factor.

For the purpose of deciding on the imposition of an administrative fine and its amount, in accordance with the evidence available at this moment of the initiation of the sanctioning procedure, and without prejudice to what results from the instruction, it is deemed appropriate to adjust the sanction to be imposed according to the following circumstances, as contemplated in the aforementioned provisions.

– The circumstance of Article 83.2.b) GDPR: "the intentionality or negligence in the infringement."

The personal data of the claimant is held by the party being claimed in its capacity as the former property manager of the community of owners of which it is (...) first. In this case, intentionality could be appreciated in the actions of the claimed party by taking advantage of such information to incorporate the claimant's data into the direct debit order for the water bill of the community of owners without express authorization for this and after having ceased its contractual relationship with the community of owners.

The CJEU ruling of December 5, 2023, in case C-807/21, states in paragraph 76 the following: "In this regard, it should also be specified, concerning the question of whether an infringement has been committed intentionally or negligently and, therefore, can be sanctioned with an administrative fine under Article 83 of the GDPR, that a data controller can be sanctioned for behavior falling within the scope of the GDPR when they could not ignore the infringing nature of their conduct, whether or not they were aware of infringing the provisions of the GDPR (see, by analogy, the judgments of June 18, 2013, Schenker & Co. and others, C-681/11, EU:C:2013:404, paragraph 37 and cited case law; of March 25, 2021, Lundbeck/Commission, C-591/16 P, EU:C:2021:243, paragraph 156, and of March 25, 2021, Arrow Group and Arrow Generics/Commission, C-601/16 P, EU:C:2021:244, paragraph 97)."

– The evident link between the business activity of the claimed party and the processing of personal data of clients or third parties (Article 83.2.k of the GDPR in relation to Article 76.2.b of the LOPDGDD).

The ruling of the National Court of October 17, 2007 (rec. 63/2006), regarding entities whose activity involves continuous processing of customer data, indicates that "...the Supreme Court has understood that there is negligence whenever a legal duty of care is disregarded, that is, when the infringer does not behave with the required diligence. And in assessing the degree of diligence, the professionalism or lack thereof of the subject must be especially weighed, and there is no doubt that, in the case now examined, when the activity of the appellant involves constant and abundant handling of personal data..."

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeapd.gob.es

8/14

It must be insisted that personal data must be treated with rigor and exquisite care to comply with the

legal provisions regarding this matter.”

The aggravating factor of Article 83.2.k of the GDPR is justified in this case due to the clear and direct link between the business activity of the entity being claimed (in this case, a property management company) and the processing of personal data of the owners of the homes located in the communities of owners it manages. Given that the business not only requires but is based on the constant processing of personal data, the failure to comply with the obligations for the protection of this data acquires a special severity, thus justifying the concurrence of the aforementioned circumstance. The balance of the circumstances contemplated in Article 83.2 of the GDPR and Article 76.2 of the LOPDGDD regarding the infringement committed by violating the provisions of Article 6.1 of the GDPR allows for an initial assessment of a fine of €8,000 (eight thousand euros).

VII

Corrective Measures

If the infringement is confirmed, the resolution issued may establish the corrective measures that the infringing entity must adopt to put an end to the non-compliance with personal data protection legislation, in this case, Article 6.1 of the GDPR, in accordance with the provisions of the aforementioned Article 58.2.d) of the GDPR, according to which each supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified timeframe...”

Thus, the responsible entity may be required to adjust its actions to the personal data protection regulations, to the extent expressed in the previous Legal Grounds.

In this act, the presumed infringement committed and the facts that could lead to this possible violation of data protection regulations are established, from which it is clearly inferred what measures are to be adopted, without prejudice to the fact that the type of procedures, mechanisms, or specific instruments for implementing them corresponds to the sanctioned party, as it is the data controller who fully knows its organization and must decide, based on proactive responsibility and a risk-based approach, how to comply with the GDPR and the LOPDGDD.

However, in this case, regardless of the above, in accordance with the evidence available at this moment regarding the initiation of sanctioning proceedings, the resolution adopted may require Fundación Habitatje Social to adopt the following measures within 2 months from the date of effectiveness of the resolution concluding this procedure:

—

To prove the adoption of the necessary measures to ensure compliance with the provisions of Article 6.1 of the GDPR.

The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided in Article 83.2 of the GDPR.

It is warned that failure to comply with the possible order to adopt measures imposed by this agency in the resolution of the present sanctioning procedure may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in Articles 83.5 and 83.6, and such conduct may lead to the initiation of further administrative sanctioning proceedings.

Furthermore, it is reminded that neither the acknowledgment of the infringement committed nor, where applicable, the voluntary payment of the proposed amounts, exempts the obligation to adopt the relevant measures to cease the conduct or correct the effects of the infringement committed and to prove to this AEPD compliance with that obligation.

Therefore, in light of the above, by the Presidency of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEEDINGS against FUNDACIÓ PRIVADA DE SERVEIS PER ALS USUARIS DEL HABITATGE SOCIAL DE CATALUNYA, with NIF G62041207, for the alleged infringement of Article 6.1 of the GDPR classified in Article 83.5.a) of the GDPR.

SECOND: TO APPOINT B.B.B. as the instructor and C.C.C. as the secretary, indicating that they may be challenged, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into the sanctioning file, for evidentiary purposes, the complaint filed by

the complainant and its documentation, as well as the documents obtained and generated by the General Subdirectorate for Data Inspection in the actions prior to the initiation of the present sanctioning procedure.

FOURTH: THAT for the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanction that may correspond would be, for the alleged infringement classified in Article 83.5.a) of that regulation, an administrative fine of €8,000 (eight thousand euros), without prejudice to what results from the instruction.

FIFTH: TO NOTIFY this agreement to FUNDACIÓ PRIVADA DE SERVEIS PER ALS USUARIS DEL HABITATGE SOCIAL DE CATALUNYA, with NIF G62041207,

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeaepe@gob.es

10/14

granting a period of ten working days for the submission of allegations and presentation of evidence deemed appropriate. In your written allegations, you must provide your NIF and the file number indicated in the heading of this document.

If no allegations are made within the stipulated period regarding this initiation agreement, it may be considered a proposal for resolution, as established in Article 64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

In accordance with the provisions of Article 85 of the LPACAP, you may acknowledge your responsibility within the period granted for the formulation of allegations to this initiation agreement; this will entail a reduction of 20% of the sanction that may be imposed in this procedure. With the application of this reduction, the sanction would be set at €6,400 (six thousand four hundred euros), concluding the procedure with the imposition of this sanction.

Similarly, you may, at any time prior to the resolution of this procedure, make a voluntary payment of the proposed sanction, which will imply a reduction of 20% of its amount. With the application of this reduction, the sanction would be set at €6,400 (six thousand four hundred euros) and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

The reduction for the voluntary payment of the sanction is cumulative with the one applicable for the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted for formulating allegations to the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions were applicable, the amount of the sanction would be set at €4,800 (four thousand eight hundred euros).

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the express withdrawal or renunciation of any action or administrative appeal against the sanction.

For these purposes, in case you opt for any of them, you must send to the General Subdirectorate of Data Inspection an express communication of the withdrawal or renunciation of any action or administrative appeal against the sanction indicating which of the two reductions you are opting for or if it is for both.

In case you choose to proceed with the voluntary payment of any of the amounts indicated above (€6,400.00 or €4,800.00), you must make it effective by depositing it into account No. IBAN: ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX) opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which you are adhering.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeaepe@gob.es

11/14

You must also send the proof of payment to the General Subdirectorate of Inspection along with the express communication of the withdrawal or renunciation of any action or administrative appeal against the sanction to continue with the procedure in accordance with the amount deposited. The procedure will have a maximum duration of twelve months from the date of the initiation agreement. If this period elapses without a resolution being issued and notified, it will expire and, consequently, the file of actions will occur; in accordance with the provisions of Article 64 of the LOPDGDD.

Finally, it is noted that according to the provisions of Article 112.1 of the LPACAP, no administrative appeal is available against this act.

Lorenzo Cotino Hueso

President of the Spanish Agency for Data Protection

>>

SECOND: On March 28, 2025, Fundación habitatge social proceeded to pay the sanction in the amount of €4,800.00 making use of the two reductions provided for in the initiation agreement transcribed above, which implies the acknowledgment of responsibility in relation to the facts referred to in the initiation agreement and its legal qualification.

THIRD: In the initiation agreement transcribed above, it was indicated that, if the infringement is confirmed, it could be agreed to impose on the responsible party the adoption of appropriate measures to adjust its actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specified manner and within a specified time frame...".

Having acknowledged the responsibility for the infringement, the imposition of the measures included in the initiation agreement is warranted.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to resolve this procedure.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeae@pd.gob.es

12/14

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, insofar as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in sanctioning procedures" provides as follows:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely pecuniary or when a pecuniary sanction and another non-pecuniary sanction can be imposed but the impropriety of the latter has been justified, voluntary payment by the alleged responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of

compensation for damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely pecuniary, the competent authority to resolve the procedure shall apply reductions of at least 20% on the amount of the proposed sanction, which shall be cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure, and their effectiveness shall be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction. The percentage of reduction provided in this section may be increased by regulation.”

III

Voluntary payment and acknowledgment of responsibility

In accordance with the provisions of the aforementioned Article 85 of the LPACAP, the notified initiation agreement informed about the possibility of acknowledging responsibility and making voluntary payment of the proposed sanction, which would entail two cumulative reductions of 20% each. With the application of these two reductions, the sanction would be set at 4,800.00 euros, and its payment would imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

Following the notification of the aforementioned initiation agreement, Fundació Habitatge Social has proceeded to acknowledge responsibility and make voluntary payment of the sanction, availing itself of the two reductions provided. In accordance with paragraph 3 of Article 85 LPACAP, the effectiveness of the aforementioned reductions shall be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeaepd.gob.es

13/14

It should be noted that, in accordance with the provisions of the LPACAP, as well as the jurisprudence of the Supreme Court in this matter, the exercise of voluntary payment by the alleged responsible party does not exempt the administration from the obligation to resolve and notify all procedures, regardless of their initiation form. Likewise, Article 88 of the aforementioned regulation establishes that the resolution that concludes the procedure will decide all issues raised by the interested parties and those arising from it.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of sanctions, the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the commission of the infringements and TO CONFIRM the sanctions determined in the dispositive part of the initiation agreement transcribed in this resolution.

The sum of the aforementioned amounts results in a total of 8,000.00 euros.

After Fundació Privada de Serveis per als Usuaris del Habitatge Social de Catalunya has proceeded with the prompt payment and acknowledgment of responsibility, a reduction of 40% of the aforementioned total is applied, resulting in a final amount of 4,800.00 euros.

The effectiveness of the aforementioned reductions is conditioned, in any case, upon the withdrawal or renunciation of any action or administrative appeal.

SECOND: TO DECLARE the termination of procedure EXP202405697, in accordance with the provisions of Article 85 of the LPACAP.

THIRD: TO ORDER Fundació Privada de Serveis per als Usuaris del Habitatge Social de Catalunya to notify the Agency within 2 months from the date this resolution becomes final and enforceable, of the adoption of the measures described in the legal grounds of the initiation agreement transcribed in this resolution.

FOURTH: TO NOTIFY this resolution to Fundació Privada de Serveis per als Usuaris del Habitatge Social de Catalunya.

FIFTH: In accordance with the provisions of Article 85 of the LPACAP, which conditions the reduction for voluntary payment and acknowledgment of responsibility to the withdrawal or renunciation of any action or administrative appeal, this resolution shall be final in the administrative process and fully

enforceable from its notification.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Administrative Procedure

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sede.aepd.gob.es

14/14

Common of the Public Administrations, interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within a period of two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

However, in accordance with the provisions of Article 90.3.a) of the LPACAP, the firm resolution in the administrative process may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Agency's Electronic Registry

[<https://sede.aepd.gob.es/sede-electronica-web/>], or through one of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

1259-260325

Lorenzo Cotino Hueso

President of the Spanish Agency for Data Protection

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sede.aepd.gob.es